(8)

Supreme Court, U.S.
FILED
DEC 16 1998
OFFICE OF THE CLERK

No. 98-737

In The
SUPREME COURT OF THE UNITED STATES
October Term, 1998

**JONATHAN W. MARSHALL, et al.,**

*Petitioners,*

**v.**

**RONALD SUSTER, et al.,**

*Respondents.*

ON PETITION FOR WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

---

# REPLY BRIEF

---

**BETTY D. MONTGOMERY**
Attorney General
**MICHAEL J. RENNER**
Chief Counsel
*Counsel of Record*
**ELISE W. PORTER**
Office of the Attorney General
30 East Broad Street, 17th Flr.
Columbus, Ohio 43215-3428
(614) 644-8903
(614) 466-5087 (fax)

Counsel for Petitioners

9 pp

## TABLE OF CONTENTS

**Page**

TABLE OF AUTHORITIES ..... ii

REASONS FOR GRANTING THE WRIT ..... 1

I. THE SIXTH CIRCUIT'S FIRST ERROR IS IN THE *SIMULTANEOUS* REVIEW OF THE FORMER CANON AND REMAND OF THE AMENDED CANON ..... 1

II. THE SIXTH CIRCUIT ERRED IN HOLDING THAT LIMITS ON CAMPAIGN SPENDING ARE FOREVER PRECLUDED BY *BUCKLEY* ..... 4

CONCLUSION ..... 6

## TABLE OF AUTHORITIES

**Page**

**CASES**

*Buckley v. Valeo*,
424 U.S. 1 (1976) ..... 3

*Diffenderfer v. Central Baptist Church*,
404 U.S. 412 (1972) ..... 2

*FEC v. NC-PAC*,
470 U.S. 480 (1985) ..... 4

*Rosenstiel v. Rodriguez*,
101 F.3d 1544 (8th Cir. 1996) ..... 2, 3

**OTHER AUTHORITIES**

Ohio Supreme Court Code of Judicial Conduct
Canon VII ..... 1

## REASONS FOR GRANTING THE WRIT

Respondents, as well as the court below, have ignored one of the fundamental principles of American liberty: judicial impartiality. Without the assurance of neutrality and impartiality of judicial officers, the law as we know it would cease to exist. Interpretation of the law would go to the highest bidder, and the judiciary will have succumbed to the political pressures of the day.

A compelling, and indeed paramount state interest in the impartiality of the judiciary must be recognized if state laws are to be administered according to consistent, neutral principles. Otherwise, elected judges will not be valued by state citizens as impartial arbiters of the law, but viewed as demeaning the rule of law in exchange for political power.

This case presents a unique opportunity for the Court to assure the impartiality and the perception of impartiality of the elected judiciary in Ohio, and around the country. The Court must take this case to recognize the compelling state interest in a neutral and unbiased state judiciary, and to hold that such an interest can justify limits on expenditures in judicial campaigns.

### I. THE SIXTH CIRCUIT'S FIRST ERROR IS IN THE *SIMULTANEOUS* REVIEW OF THE FORMER CANON AND REMAND OF THE AMENDED CANON

The court below made a fundamental error in remanding the amendment to Canon VII(C)(6)(a) for a "full review" and *simultaneously* reviewing and rejecting the former version of that Canon. Respondents' briefs in opposition seek to separately justify the two actions of the

Sixth Circuit. *See*, Brief for Respondents Boyko, Kane and Saferin, ("Boyko brief") p. 9-13, 13-14; Brief for Respondents Suster & Cleary ("Suster brief") p 7-9. By handling the issues separately, Respondents attempt to make the remand and review each seem reasonable. Indeed, either action *alone*, given the proper circumstances, might have been reasonable; the lower court's *simultaneous* review and remand is what renders its holding fundamentally erroneous.

If, during the course of litigation involving a facial challenge to a law, the law undergoes an amendment, the federal courts are enjoined to review *only* the new law. *Diffenderfer v. Central Baptist Church*, 404 U.S. 412, 414 (1972). As explained in the Petition, the courts have consistently exercised one of three options: (1) if the amendment moots the appeal, the lower court decision is vacated and the case dismissed; (2) if the amendment requires additional findings of fact or legal analysis, the case is sometimes remanded for further review; (3) if the amendment does not make substantial changes, the appellate court will review the law as it now stands. *See*, Petition, p. 9. Review of the former law is not an option.

The Sixth Circuit, in its attempt to "split the baby" has instead created a split in the circuits that must be resolved. The holding below contradicts a long line of cases in the circuit courts, holding that the court must review the new law, and exercise one of the options outlined above. *See*, Petition, p. 10-11. This line of cases is best represented by *Rosenstiel v. Rodriguez*, 101 F.3d 1544 (8th Cir 1996). Respondent's main argument against review of the new law is that the amendment came after the main briefing was

complete.[1] However, in *Rosenstiel*, a case virtually identical to this one, the Eighth Circuit reviewed the new law, even though the law was amended after both briefing and oral argument. Respondents can distinguish *Rosenstiel* only on the basis that the parties there did not want remand. Boyko brief, p. 11. In this case, no party requested remand; the court remanded *sua sponte*. If the court below wished to "protect" the Respondents from potential discipline, *see* Suster brief, p. 8, it had two options: to review the new law, and the injunction, or remand both the injunction and the new law for review.

Above all, a simultaneous review of the former law and remand of the amended law results in an untenable procedural posture. Respondents argue that the remand is necessary for a "full development of the factual record and the legal arguments of the parties." Boyko brief, p. 10-11. However, such a "full development" has been forever precluded by the court's simultaneous determination that the former Canon is unconstitutional. Having determined that *Buckley v. Valeo*, 424 U.S. 1 (1976) precludes *any* caps on campaign spending, the Sixth Circuit has already decided any legal arguments with regard to compelling state interest for either Canon. Factual findings with regard to the amended Canon would be a vain act, because under the Sixth Circuit's analysis, the district court will never reach the issue most affected by a factual development: narrow tailoring.

---

[1] Contrary to assertions by Respondents Boyko, Kane and Saferin, the amendment was brought to their attention and to the attention of the Sixth Circuit in Petitioner's reply brief before that court. In addition, the motion dealing with this issue came months before oral argument, and therefore afforded Respondents more than adequate time to respond.

In addition, as argued by Amici States, the actions of the Sixth Circuit put all States in the Circuit in a difficult position. The States are strongly discouraged from improving a law through amendment when there is pending litigation involving that law, for fear of a procedural mess similar to the one here.

Simply put, the Sixth Circuit has created an impossible situation for the district court, and produced a split in the circuits on the issue of the review of an amended law and the procedural options available when a law has been amended. The Court must take this case in order to resolve the split, and review the law as it now stands. At the least, the Court should vacate the Sixth Circuit's opinion and allow the district court a clean slate upon which to review the new Canon.

## II. THE SIXTH CIRCUIT ERRED IN HOLDING THAT LIMITS ON CAMPAIGN SPENDING ARE FOREVER PRECLUDED BY *BUCKLEY*

Contrary to the assertions of all Respondents, *Buckley* held only that campaign spending limits for federal *legislative and executive* campaigns were not narrowly tailored to serve the only governmental interest put forward in that case: the prevention of corruption and the appearance of corruption. *See*, Boyko brief, p. 15-16; Suster brief, p. 10-11. This Court has always left open the possibility that other compelling interests might exist that would justify limits on campaign speech, perhaps including limits on spending. *FEC v. NC-PAC* 470 U.S. 480, 496-497 (1985).

Respondents stridently insist that there is no case from this Court or the Sixth Circuit which expands the list of compelling state interests justifying limits on political speech.

*See*, Suster brief p. 11. That is the very reason Petitioners are before the Court today. If there were a case dealing with judicial elections, or otherwise expanding the list of compelling state interests, the need for a grant of certiorari in this case would be far less compelling.

Respondents also argue that the Court need not examine the proposed compelling state interest because limits on campaign spending are not the least restrictive means of achieving that interest. Boyko brief, p. 16-17. Respondents have the analysis exactly backwards. Before arguments can be made about least restrictive means, the exact nature of the compelling state interest must be determined.

Respondents quote extensively from *Buckley* to emphasize their point that judicial elections are amenable to the same restrictions as those for legislative or executive office. *See*, Suster brief p. 14-16. However, these quotes merely serve to illustrate the stark differences. In a legislative or executive election, a restriction on spending may "restrict the number of issues discussed" and "the depth of their exploration." In a judicial campaign, the number of issues is already severely restricted. The judicial candidate cannot discuss how he would vote on a particular case, or even his views on a subject that may come before him.

Similarly, an assurance of the "unfettered interchange of ideas for the bringing about of political and social changes desired by the people," is exactly contrary to the nature of a judicial campaign. Political and social changes desired by the people are the province of the legislature and executive, decidedly not the province of the judiciary. Restricting such an "unfettered exchange" in a judicial election is not only appropriate, but desirable. The public has a right to an elected judiciary unfettered by the pre-election partiality

which is the natural result of unlimited exchange and debate of ideas regarding social policy. We should not permit a judge to be torn between a decision based on the law and facts and a decision made in fulfillment of a campaign promise.

In short, Respondents have pointed out the two most significant reasons for the Court to take this case: (1) to examine judicial elections for the first time, and determine whether the list of compelling state interests justifying limits on political speech should be expanded; and (2) to determine whether the compelling state interest of the preservation of impartiality and the appearance of impartiality justifies limits on campaign spending *in judicial elections*.

## CONCLUSION

For the foregoing reasons, the petitioners respectfully request the Court to grant the writ.

Respectfully submitted,

**BETTY D. MONTGOMERY**
Attorney General

**MICHAEL J. RENNER**
Chief Counsel
**ELISE PORTER**
Assistant Attorney General
30 E. Broad Street, 17th Floor
Columbus, Ohio 43215-3428
(614) 644-8903
(614) 466-5087 (fax)

December 16, 1998.